

GORSUCH, J., dissenting

lacked jurisdiction because otherwise the defendant would be “liable to be twice tried and punished for the same offence, against the manifest intent of the act of Congress, the principles of the common law, and the genius of our free government.”⁵⁸ But notice the point of agreement between majority and dissent: Both acknowledged that a second prosecution for the same underlying offense would be prohibited even if brought by a separate government.⁵⁹

Another case decided the same year also reflected the *Hutchinson* rule. In *United States v. Furlong*, one British subject killed another on the high seas, and the killer was indicted in an American federal court for robbery and murder. This Court unanimously held that “[r]obbery on the seas is considered as an offence within the criminal jurisdiction of all nations” that can therefore be “punished by all,” and there can be “no doubt that the plea of *autre fois acquit* [double jeopardy] would be good in any civilized State, though resting on a prosecution instituted in the Courts of any other civilized State.”⁶⁰

A number of early state cases followed the same rule. Indeed, the Court today acknowledges that Massachusetts,

⁵⁸ *Id.*, at 72.

⁵⁹ The Court insists that *Houston* involved an unusual state statute that “‘imposed state sanctions for violation of a federal criminal law.’” *Ante*, at 705. But so what? Everyone involved in *Houston* agreed that the defendant had been tried by a Pennsylvania court, under a Pennsylvania statute, passed by the Pennsylvania Legislature. And though there were separate sovereigns with separate laws, everyone agreed there was only one offense.

⁶⁰ 5 Wheat. 184, 197 (1820). To be sure, *Furlong* proceeded to indicate that an acquittal for *murder* in an American court would not have prohibited a later prosecution in a British court in this case. But that was only because the British courts would not have recognized the jurisdiction of an American court to try a murder committed by a British subject on the high seas. *Furlong*’s discussion is therefore perfectly consistent with the *Hutchinson* principle—a rule that applied only when both courts had “competent jurisdiction of the offence” and could actually place the defendant in jeopardy. See 4 Blackstone, Commentaries 365.